

### 3.2. Requests of equal ranking

In T 148/06 the board held several requests inadmissible which were submitted not as principle and auxiliary requests, but as requests of equal ranking. It was not the board's duty to give a legal opinion on the admissibility of several requests as guidance for appellants in defining the order in which they would like their requests to be examined. See also T 255/05 on the applicant's responsibility to define the text on the basis of which it requests a patent to be granted (in this chapter III.1.2).

### 3.3. Requesting further opportunity to formulate new requests

In T 792/92 the board considered as inadmissible the appellant's request at the end of the oral proceedings that, should the outcome of the discussions be negative for him, he be given the opportunity to formulate new requests.

### 3.4. Admissibility of late-filed requests

On the late filing of requests for amendment in examination proceedings, see chapter IV.B.3.3.3 "Criteria for admitting amendments filed in reply to the Rule 71(3) EPC communication"; in opposition proceedings, see chapter IV.C.5.1.4 "Time frame for filing amendments"; and in appeal proceedings, see chapter V.A.4. "New submissions on appeal".

## 4. Obligation to give reasons for refusal of each request

If a decision relates to several requests, it must give reasons for the rejection of each one. It must be clear from the decision which considerations led the division to its conclusions (T 234/86 (inter partes), T 169/96 (ex parte)).

According to T 961/00, it is a party's procedural right to file and maintain such requests as are regarded by the competent organ as unallowable or even inadmissible. If a party does so, then the competent organ has to give a decision on it, i.e. to refuse it if it is unallowable or inadmissible (see e.g. T 1105/96, OJ 1998, 249; T 1029/16), but it cannot simply disregard it and deal with the case as if the request did not exist. On the contrary, this would constitute a substantial procedural violation.

## 5. Withdrawal of request

In several recent decisions, boards have concluded (contrary to T 1157/01; see next paragraph) that **requests can be withdrawn implicitly** and that there is an implicit withdrawal when the circumstances leave **no doubt** that the party did not intend to pursue them (see T 388/12, T 2301/12, T 52/15, T 1255/16 and T 1695/14).

In T 1157/01 the applicant had maintained all its requests (main and three auxiliary requests). When it declared its non-approval of the text proposed for grant based on the third auxiliary request, however, the appellant did not explicitly repeat that it maintained all its previous and higher ranking requests. The board considered that, according to the

general principle "a jure nemo recedere praesumitur" mentioned in **G 1/88** (OJ 1989, 189), in the absence of an **explicit** withdrawal, surrender of a right could not be simply presumed and silence could not be deemed to be equivalent to surrender in the logic of how the Convention operated.

In **T 388/12** the board confirmed that, as a general principle of law, surrender of a right could not be simply presumed (with reference to **G 1/88**). On a strict application of the principle "a jure nemo recedere praesumitur", the withdrawal of a request could only result from acts of the party that manifestly establish such intention. At the same time, the board held that explicit withdrawal of a request would not be required insofar as the intention of the party, as it might result from its behaviour or comments made, was **unequivocal**.

Circumstances leaving no doubt that requests had been withdrawn were established in the following decisions:

In **T 2301/12** the proprietor had replaced the initial requests with new requests before the opposition division. The board held that the use of the word "replace" implied that the initial main request was no longer the current main request, and since there was no attempt to retain it as a new auxiliary request either, it was difficult to avoid the conclusion that it had been simply withdrawn. The new requests had been annexed to the minutes and the first of them was clearly entitled "main request". The board did not accept the argument that the titles of requests should be considered mere labels for identification. Where a proprietor filed multiple requests, there had to be a single main request, and it had to be apparent at every stage of the proceedings which request this was.

In the same vein, in **T 52/15** the board noted that, in the circumstances of the case, the opposition division did not err when considering that each newly filed "main request" was clearly meant to replace the previously filed one/s. The board emphasised that the withdrawal of a request was a serious procedural step which was usually announced explicitly by a party via a corresponding statement and that any such statement must be mentioned in the minutes (see **T 361/08**). However, an explicit withdrawal was not required if a party's behaviour or procedural steps it took during the proceedings made its intention unequivocal (see **T 388/12**). The board confirmed that EPO departments have the duty to ensure that any uncertainty with regard to procedural acts of the parties is clarified. However, the board held that, if a procedural act of a party was clear and there were no reasons to suggest that its intentions were not correctly understood, that party could not expect not to have to bear the consequences of that procedural act.

In **T 1255/16** the board concluded from the following elements that the previously filed requests had been replaced with the newly filed claims: the appellant's reply to the preliminary opinion, in which the board had raised objections against the previously filed requests, contained no arguments in their support, but merely gave reasons why the newly filed amended claims complied with the EPC; in addition, the appellant did not disagree when the board informed him, in a further communication, of its understanding that the newly filed claims replaced the previous pending substantive requests.

In T.1695/14 too, the board found that the request had been implicitly withdrawn. It also held that requests not later pursued as the main request or as an auxiliary request but instead (implicitly) withdrawn did not remain in the proceedings; the procedural law allowed for pending or withdrawn requests, but not for ones on hold.

## 6. Examination procedure

### 6.1. Direct rejection of auxiliary request by examining division

In T.488/94, the board stated that before refusing an application in the case of main and auxiliary requests, the examining division in accordance with Art. 113(1) EPC 1973 would not only have to communicate its arguments regarding non-allowability of the main request to the applicant, but also regarding non-allowability of the auxiliary request, if the result of the subsequent examination of the auxiliary request was also negative. A "direct" rejection of an auxiliary request without preceding communication of the grounds on which the rejection was based would only comply with the requirements of Art. 113(1) EPC 1973 under rather exceptional circumstances, e.g. if there could be no doubt about the fact that the arguments already communicated to the applicant with respect to the subject-matter of the main request equally applied to the subject-matter of the auxiliary request (at least implicitly).

### 6.2. Rejection in advance of further request by examining division

According to T.1105/96 (OJ 1998, 249), an applicant has a right both to file one or more auxiliary requests in addition to a main request, and to maintain all such requests even if the examining division communicated its view that all except the last auxiliary request were inadmissible or unallowable, and he was then entitled to a reasoned appealable decision in respect of rejection of each such request (see also T.1029/16). Where an examining division had communicated its view that a further request in the form of an amended text of a claim would be allowable, the rejection in advance of such a further request unless all preceding requests were abandoned was an unlawful exercise of discretion under R. 86(3) EPC 1973 (R. 137(3) EPC) and a substantial procedural violation under R. 67 EPC 1973 (R. 103 EPC).

### 6.3. Practice of proposing one main and one or more auxiliary requests

The board in T.1351/06 referred to the decisions T.79/89 (OJ 1992, 283), T.169/96, T.1105/96, (OJ 1998, 249) and to Legal Advice No. 15/05 (rev. 2, OJ 2005, 357; now incorporated into the Guidelines, see Guidelines H-III, 3 – March 2022 version), where it was held that it was standard practice at the EPO that the applicant was able to propose one main and one or more auxiliary requests at the examination stage, to amend the text of the application. The board saw no reason why the applicant should not also be able to do so in response to a communication under R. 51(4) EPC 1973 (R. 71(3) EPC), especially in cases where that communication had not been preceded by a communication under Art. 96(2) EPC 1973 (Art. 94(3) EPC) and thus constituted a "first communication" within the meaning of R. 86(3) EPC 1973 (R. 137(3) EPC).

## **7. Interlocutory decision on allowable auxiliary request – distinction between examination proceedings and opposition proceedings**

In T 549/96 it was noted that Art. 113(2) EPC 1973 required the examining division to decide upon an application only in the text agreed by the applicant. Thus an applicant had to indicate clearly at the end of the proceedings which text he wished to be used. If an applicant failed to indicate his approval of the text of an allowable subsidiary request, e.g. by express disapproval or by maintaining one or more unallowable higher-preference requests over one considered allowable by the examining division, the examining division could refuse the application under Art. 97(1) EPC 1973. The board **contrasted opposition and grant proceedings**. In the case of an allowable auxiliary request in opposition proceedings an interlocutory decision was taken under Art. 106(3) EPC 1973 (Art. 106(2) EPC) to the effect that the European patent met the requirements of the EPC 1973, account being taken of the amendments made by the patent proprietor. This interlocutory decision then also had to include the reasons why the preceding requests did not meet the requirements of the EPC 1973. This saved the proprietor the further costs of fulfilling the formal requirements under R. 58(5) EPC 1973 (R. 82(2) EPC) before there was a final decision on the version in which the patent could be maintained. No comparable situation existed in grant proceedings. On the contrary, in ex parte appeal proceedings the principle of examination ex officio applied. Up to the grant stage it had to be ensured that the conditions for patentability were met. An interlocutory decision, stating that the application in a certain version met the requirements of the EPC 1973, would be in conflict with this purpose. The board drew attention to Legal Advice No. 15/98 (OJ 1998, 113).

In T 482/06, the board found that decision T 549/96 was compatible with the updated Legal Advice No. 15/05 (rev. 2) (OJ 2005, 357), as it stated that "an applicant must unambiguously indicate at the end of the proceedings, which text he proposes". Legal Advice No. 15/05 set out the mechanism to provide this indication. See also T 976/97, also before the entry into force of Legal Advice 15/05, where the situation was similar to that in T 549/96. In T 1220/05 the board (referring to T 839/95 and T 549/96) confirmed that interlocutory decisions finding an auxiliary request allowable were not in keeping with standard first-instance practice in examination proceedings, as opposed to opposition proceedings (see Legal Advice No. 15/05 (rev. 2), point 1.1), and in appeal jurisprudence were deemed undesirable owing to possible repercussions (binding effect, no reformatio in peius).

On the interlocutory decision in opposition proceedings (that the European patent as amended meets the requirements of the EPC), see chapter IV.C.8.2.2.

## **8. Opposition procedure**

According to T 234/86 (OJ 1989, 79), the opposition division can – and in certain circumstances must – maintain the patent as per the patentee's subordinate auxiliary request if he pursues main and auxiliary requests which are not allowable although taking precedence over the allowable one. Rejection of the requests which take precedence must be reasoned.

In T. 5/89 (OJ 1992, 348) the board confirmed that a decision may confine itself to rejecting the main request only if all subordinate requests have been withdrawn. This principle was also confirmed in T. 785/91 and T. 81/93. Following T. 5/89, the board in T. 861/97 stated that deciding to revoke a patent solely on the basis of the main request when there was an expressly maintained auxiliary request constituted an infringement of Art. 113(2) EPC 1973.

In T. 155/88 the board made it clear that the patentee could not be required to withdraw any request. If he filed one or more auxiliary requests in addition to a main request and did not withdraw any of them, an opposition division was obliged in its decision to give reasons why each successive request was either not admissible (in the exercise of its discretion under R. 57(1) EPC 1973 and R. 58(2) EPC 1973, see T. 406/86, OJ 1989, 302), or not allowable on substantive grounds (see T. 234/86, OJ 1989, 79). If an opposition division allowed an auxiliary request without giving reasons in its decision as to why the main request or preceding auxiliary requests were not allowable, such decision would be set aside as void and of no legal effect, and the appeal fee refunded on the basis of a substantial procedural violation, as was the case in T. 234/86 and T. 484/88.

In T. 848/00 the patentee had requested the deletion of the product claims from the main request in oral proceedings before the opposition division. In appeal proceedings the patentee argued that it had never abandoned the subject-matter of the product claims and that its actions in opposition had only introduced a new auxiliary request. The board agreed with the reasoning of decision T. 155/88 that if a patentee proposed amendments to its claims which arose out of the opposition and which were intended to meet the grounds of objection raised in the opposition by limiting the scope of protection sought, this should **not** normally be interpreted as an **abandonment** of the subject-matter protected by the claims of the patent as granted. But this statement did not influence how the amended set of claims was to be read, because a **restriction** of claims was possible without abandoning the subject-matter of the patent specification as originally filed. Since the patentee had expressly requested an amendment of the main request, the board concluded that the opposition division had granted the patentee's main request and that the patentee was thus not adversely affected.

## 9. Appeal procedure

In T. 1477/15 the board stated that it is generally accepted that in appeal proceedings the **principle of party disposition** applies (see e.g. R. 13/13), meaning that parties can put forward, withhold or withdraw their requests as they see fit. In other words, if a patent proprietor withdraws or no longer agrees to a text (two auxiliary requests, in this case), this principle prevents the board of appeal from deciding on these issues.

Regarding the order of requests, however, in R. 8/16 the Enlarged Board held that the principle of party disposition expressed in Art. 113(2) EPC did not extend so as to permit a party to dictate how and in which order a deciding body of the EPO may examine the subject-matter before it. On principles established by case law with regard to the order of requests, see also chapter III.1.2.